

A. This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in **FAR Subpart 12.6**, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued.

B. The Great Plains Area Indian Health Service (IHS) intends to award a **Firm-Fixed-Price (FFP), Commercial Item purchase order** in response to Request for Quotation (RFQ) No. 75H70626Q00024.

C. This solicitation and the incorporated provisions and clauses are those in effect through Federal Acquisition Circular (FAC) 2026-01, effective March 13, 2026.

D. This RFQ is issued as an **unrestricted procurement under full and open competition**. The associated **NAICS code is 311991 – Perishable Prepared Food Manufacturing**, with a small business size standard of 700 employees.

E. Quoted pricing shall be all-inclusive and shall include, but not be limited to, all costs associated with manufacturing and delivery, including materials, labor, packaging, transportation, and all applicable federal, state, and local taxes. Offerors are encouraged to submit their most competitive and fair and reasonable pricing.

F. Offerors shall complete the pricing schedule in accordance with the attached Statement of Work:

1. Base Only (one (1) year) - Perishable Prepared Food Manufacturing & Delivery:

Grand Total (Estimated Quantities) \$: _____

G. The purpose of this requirement is to provide the **manufacture and incidental delivery** of perishable prepared food items for the Standing Rock Service Unit (SRSU), Fort Yates IHS Hospital.

H. Delivery shall be made to:

10 Standing Rock Avenue, Fort Yates, North Dakota 58538

The Period of Performance is **one (1) year from date of award**.

I. FAR 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services (SEP 2023).

Quotes shall be submitted on company letterhead stationery, signed and dated, and they shall include the following:

1. Solicitation number 75H70626Q00024.

2. Closing Date: May 27, 2026, at 12:00 pm CDT.
3. Name, address, and telephone number of company and email address of contact person.
4. Provide a technical description of the item in sufficient detail to evaluate compliance with the solicitation requirements. This may include product literature or other relevant documents, as needed.
5. Terms of any express warranty.
6. Price and any discount terms.
7. "Remit to" address, if different than mailing address.
8. A completed copy of the representations and certifications from SAM.gov.
9. Acknowledgment of Solicitation Amendments (if any issued)
10. Past performance information includes recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers, and other relevant information).
11. A statement specifying the extent of agreement with all terms, conditions, and provisions of the solicitation. Offerors that fail to furnish required representations or information or reject the terms and conditions of the solicitation may be excluded from consideration.

BASIS FOR AWARD: 52.212-2 Evaluation—Commercial Products and Commercial Services.

This award selection will be conducted using Lowest Price Technically Acceptable (LPTA) procedures. To be eligible for an award, a proposal must meet all technical requirements, comply with all required terms and conditions and include all required information. All non-price evaluation factors must be rated as "ACCEPTABLE" in order to be eligible for award. An "UNACCEPTABLE" rating in any factor will result in the proposal being rated "UNACCEPTABLE" unless corrected through discussions. A proposal rating of "UNACCEPTABLE" makes a proposal ineligible for award. Since the LPTA methodology prohibits trade-offs, all evaluation factors and sub-factors are equally important. Proposals are evaluated for acceptability but not ranked based on non-price factors.

A price evaluation will be performed for all offerors, and proposals will be ranked from lowest to highest price based on the Total Proposed Price (TPP) provided by the offeror on the price schedule sheet. Next, each factor will be evaluated and, subsequently, the overall proposal will be prepared, beginning with the lowest-priced proposal. The award

will be made to the lowest-priced proposal that meets the acceptability standards for the nonprice factors. The Government intends to award a contract without discussions with Offerors; therefore, the initial proposal shall conform to the solicitation requirements and shall present the best offer from a technical and price perspective.

Technical Factor 1 – Past Performance

(a) Solicitation Submittal Requirements:

Offerors do not need to provide any information under this factor as the US Government will base the evaluation on all INTERIM and FINAL Contractor Performance Assessment Reports (CPARs) that are recent and relevant. The CPARs will be retrieved from official US Government sources, including, but not limited to, the Contractor Performance Assessment Reporting System and the Past Performance Information Retrieval System.

(b) Basis of Evaluation:

Recency:

For the purposes of this solicitation, a past performance record is recent if the CPAR final date of assessment listed in the “Period of Performance Being Assessed” block is within the 24-month period preceding the proposal due date.

Relevancy:

For the purposes of this solicitation, a past performance record is relevant if it demonstrates experience in **food manufacturing, food supply, or delivery of perishable goods**, or similar commercial supply efforts.

In order to receive an "acceptable" rating for this factor, an Offer's recent and relevant CPARs must NOT include one or more INTERIM and/or FINAL CPARs with a rating of "UNSATISFACTORY" in one or more categories OR one or more INTERIM and/or FINAL CPARs with a rating of "MARGINAL" in two or more categories. If an Offeror has one or more CPARs with a rating of "UNSATISFACTORY" in one or more categories OR one or more CPARs with a rating of "MARGINAL" in two or more categories, the Offeror's past performance will be evaluated as "UNACCEPTABLE".

In the case of an Offeror without a record of recent and relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, “unknown” shall be considered “acceptable.” An “UNACCEPTABLE” rating for a single factor will result in the Offeror’s entire proposal being rated “UNACCEPTABLE”.

Technical Factor 2 – Problem and Approach

(a) Solicitation Submittal Requirements:

The Offeror shall provide a description of its approach to manufacturing and delivering perishable prepared food items, including:

- Ability to meet required **food specifications and quality standards**
- **Packaging, storage, and food safety procedures**
- **Delivery schedule and logistics approach**
- Ability to maintain **consistent and reliable supply**

Proposals that merely restate the requirements without providing sufficient detail will not be considered acceptable.

(b) Basis of Evaluation:

This factor will be evaluated as **ACCEPTABLE** if the Offeror demonstrates the capability to meet the requirements for product quality, food safety, and delivery. Failure to address one or more elements will result in an **UNACCEPTABLE** rating.

Technical Factor 3 – Management and Capability

(a) Solicitation Submittal Requirements:

The Offeror shall describe its organizational capability to perform this requirement, including:

- Production capacity
- Staffing and operational capability (as applicable to manufacturing/delivery)
- Quality control processes
- Ability to manage supply chain and meet demand

(b) Basis of Evaluation:

This factor will be rated **ACCEPTABLE** if the Offeror demonstrates adequate capability to successfully perform the requirement. Failure to demonstrate capability in one or more areas will result in an **UNACCEPTABLE** rating.

Factor 4 – Price

(a) Solicitation Submittal Requirements:

Completed Price Schedule Sheet

(b) Basis of Evaluation:

The Government will evaluate price based on the proposed total price calculated as the proposed total price for CLIN 0001 (Base Year), including all costs, subcontractor costs, overhead, and profit. Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

(i) Comparison of proposed prices received in response to the RFQ.

(ii) Comparison of proposed prices with the IGE.

(iii) Comparison of proposed prices with available historical information.

Note: A price that is found to be either unreasonably high or unrealistically low in relation to the proposed work may be indicative of an inherent lack of understanding of the solicitation requirements and may result in the overall proposal being considered unacceptable.

INTENT TO AWARD WITHOUT DISCUSSIONS

The Government intends to evaluate proposals and award a contract without discussion. with Offerors. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In the event discussions are held; a competitive range determination will be made. If the Contracting Officer determines the number of proposals that would otherwise be in the competitive range and exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit efficient competition among the most highly rated proposals. However, The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary.

- Provide all items listed in the Specifications Listings
- Demonstrate ability to meet the delivery schedule
- Complete the Specifications Price Lists in full

J. FAR 52.212-4 Contract Terms and Conditions-Commercial Products and Commercial Services (NOV 2023) - See attachment; Clauses Incorporated by Reference.

K. The Federal Acquisition Regulations (FAR) and Health & Human Services Acquisition Regulation (HHSAR) applicable clauses, including those below, are attached.

L. Offers will be accepted electronically; submit via email to the following:

Great Plains Area Indian Health Service

Attn: David Jones, Contract Specialist

115 4th Ave. SE, Aberdeen, SD 57401

Email: david.jones@ihs.gov.

Questions regarding this solicitation must be submitted in writing by email no later than May 16, 2026, 12:00 p.m. CDT.

Contractors will need a UEI number & TIN and must register with the System for Award Management at www.sam.gov.

Acceptance Period: Your proposal must be predicated upon all the terms and conditions of this RFQ and be firm until September 30, 2026.

The quotation must set forth full, accurate, and complete information as required by the Request for Quotation (RFQ) and be returned by the date referenced. All the necessary information must be submitted to be considered responsive and eligible for award.

No contract award shall be made to any vendor listed on the OIG Exclusions List at <http://exclusions.org.hhs.gov> throughout the contract.

Invoice Processing Platform (IPP)

The Indian Health Service (IHS) has implemented an electronic invoicing system. In compliance with the Office of Management and Budget (OMB) M-15-19 memorandum "Improving Government Efficiency and Saving Taxpayer Dollars Through Electronic Invoicing," directing Federal agencies to adopt electronic invoicing as the primary means to disburse payments to vendors. Invoices submitted under any award resulting from this solicitation will be required to utilize the Invoice Processing Platform (IPP) in accordance with HHSAR 352.232-71, Electronic Submission and Processing of Payment Requests."

IPP is a secure, web-based electronic invoicing system provided by the U.S. Department of the Treasury's Bureau of the Fiscal Service in partnership with the Federal Reserve Bank of St. Louis (FRSTL). Respondents to this solicitation are encouraged to register an account with IPP if they have not already done so. If your organization is already registered to use IPP, you will not be required to re-register. However, we encourage you to ensure that your organization's designated IPP user accounts are valid and up to date. The IPP website address is: <https://www.ipp.gov>.

If you require assistance registering or IPP account access, please get in touch with the IPP Helpdesk at (866) 973-3131 (M-F 8 AM to 6 PM ET), or IPPCustomerSupport@fiscal.treasury.gov.

"Should the contractor feel that use of the IPP would be unduly burdensome, their response to this solicitation should include an explanation of this position for a determination by the contracting officer".

STATEMENT OF WORK

Fort Yates IHS Hospital Dietary Department

1. Scope

The Contractor shall provide **food service supplies and incidental delivery services** to support the Fort Yates IHS Hospital Dietary Department, Fort Yates, North Dakota.

The Contractor shall furnish all necessary labor, materials, transportation, and supervision required to perform under this contract.

2. Requirements

The Contractor shall provide (estimated) supplies based on the operational needs of the Fort Yates Hospital Dietary Program. Items shall include, but are not limited to, the following categories:

1. **Perishable Food Items**
2. **Dry Goods (Non-Perishable Food Items)**
3. **Kitchen Utensils and Supplies** (e.g., towels, oven mitts, etc.)
4. **Kitchen Cleaning and Disinfecting Supplies**

All items shall be ordered on an **as-needed basis**.

3. Delivery Requirements

- The Contractor shall deliver all ordered items within **five (5) business days** of order placement.
 - Delivery location:
Fort Yates IHS Hospital
10 Standing Rock Avenue
Fort Yates, North Dakota 58538
 - The Contractor shall ensure proper handling, packaging, and transportation of all items to maintain quality and safety.
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4. Quality Assurance

- All delivered items shall be **free from damage, spoilage, or contamination**.
- The Government will **not accept** items that:

- Are expired
 - Are damaged
 - Will expire within **seven (7) calendar days** of delivery (for perishable goods)
 - The Fort Yates Hospital Dietary Department reserves the right to **inspect and reject** any items that do not meet quality or freshness standards.
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5. Replacement and Credit

- The Contractor shall provide **credit or replacement** for any damaged or expired goods.
 - Items identified at delivery or within **two (2) calendar days** of receipt shall be eligible for credit.
 - Replacement or credit shall be processed promptly.
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6. Priority Support

In the event of an emergency or natural disaster, the Contractor shall make reasonable efforts to prioritize deliveries to the Fort Yates Hospital Dietary Department due to the critical nature of patient care services.

7. Period of Performance

The period of performance shall be **one (1) year from the date of award**.

8. Point of Contact

Morgan Yellow

Cook Supervisor

Phone: 701-854-8230

Email: Morgan.yellow@ihs.gov

9. Invoicing

The Contractor shall submit **monthly invoices** through the **Invoice Processing Platform (IPP)** in accordance with contract requirements.

1.	Authority
1.1	No person other than the Contracting Officer has authority to bind the Government with respect to this contract;
1.2	No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract;
1.3	In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract;
1.3.1	An understanding or agreement between the Contractor and anyone other than the Contracting Officer;
1.3.2	A purported modification or change order issued by anyone other than the Contracting Officer;
1.3.3	A promise by anyone other than the Contracting Officer to provide additional funding or make payments or;
1.3.4	An order, direction, consent, or permission from anyone other than the Contracting Officer to;
1.3.4.1	Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling or;
1.3.4.2	Expend hours in excess of a specified level of effort.

CLIN	Product Description	* Est. Cases	Unit Price (\$)	Extended Price (\$)
CLIN-001	APPETIZER, BEAN GRN BTRD ONION (6917804)	1		
CLIN-002	APPLESAUCE, UNSTN FCY CND IN (8328130)	5		
CLIN-003	ASPARAGUS, CUT & TIP GRD A (9328212)	1		
CLIN-004	BACON, PORK 18-22 SLC LAID 2D (7978364)	4		
CLIN-005	BACON, PORK CKD 192 CT RND HWD (2029320)	3		
CLIN-006	BACON, PORK REAL BIT REF PURE (4389441)	7		
CLIN-007	BASE, BF PASTE LOW SDM SHLF (1120393)	2		
CLIN-008	BASE, CHIX PASTE LOW SDM SHLF (8120388)	1		
CLIN-009	BEAN, GRN CUT 2-4 SIEV FCY IQF (3328218)	3		
CLIN-010	BEAN, NAVY DRIED FRNCH (2998698)	1		
CLIN-011	BEARD COVER, N-WVN WHT 18 (5178556)	1		
CLIN-012	BEEF, CHUK SHORT RIB CHO BNLS (9465510)	2		
CLIN-013	BEEF, GRND 81/19 FINE RAW REF (1864107)	12		
CLIN-014	BEEF, PTY GRND STK BURGR 3 Z (9136419)	3		
CLIN-015	BEEF, PTY GRND STK BURGR CHUK (7198154)	6		
CLIN-016	BOLOGNA, AM SLCD .5 Z CKD REF (5212279)	5		
CLIN-017	BOWL, FM 10 Z WHT (6884050)	1		
CLIN-018	BOWL, FM 8 Z WHT (6884001)	1		
CLIN-019	BOX, PCRN 2.5 Z PAPR CONT (4865317)	1		
CLIN-020	BOX, PIZA 16 BFLT K/K CAFITLN (3435605)	1		
CLIN-021	BOX, PIZZA 9.25X10.25 SLICE C (1061735)	1		
CLIN-022	BREAD, WHT 24 SLCD LOAF BKD (238170)	1		
CLIN-023	BREAD, WHT 26 SLCD LOAF FZN (4340303)	10		
CLIN-024	BROCCOLI, FLORT ICLS FRESH REF (2326429)	1		
CLIN-025	BUTTER, SALTD SS CUP REF 90 CT (568436)	1		
CLIN-026	BUTTER, UNSLTD SOLID AA GRD (899807)	2		
CLIN-027	CARROT, DCD 3/8 FCY FZN BAG (4328381)	1		
CLIN-028	CEREAL, ASST FAVRT CUP SPR SZ (5355193)	2		
CLIN-029	CHEESE, CHEDR MILD SHRD BAG (1332642)	11.5		
CLIN-030	CHEESE, MOZZ SHRD FTHR LMPS (7332372)	5		
CLIN-031	CHEESE, PARM GRTD SS POUCH (4051624)	1		
CLIN-032	CHICKEN, BRST BRDD STF KIEV 2D (5664396)	1		
CLIN-033	CHICKEN, BRST SNGL 6 Z BNLS IF (7000425)	14		
CLIN-034	CHICKEN, BRST STUFD BRDD CRDN (5664347)	1		
CLIN-035	CHICKEN, PTY 3.45 Z BRDD WHL (8887119)	1		
CLIN-036	CHICKEN, STRIP BRST MEAT .38 (8169013)	3		
CLIN-037	CHICKEN, STRIP BRST MEAT .5 (3680942)	8		
CLIN-038	CHICKEN, TNDLN BRDD FRITR JMB (790717)	13		
CLIN-039	CHICKEN, TNDLN BRDD FRITR MED (7777287)	2		
CLIN-040	CHICKEN, TNDLN BRDD MED SESD (4230298)	4		
CLIN-041	CHICKEN, WING 1&2JT 6-8 CT CKD (9067218)	9		

CLIN	Product Description	* Est. Cases	Unit Price (\$)	Extended Price (\$)
CLIN-042	CHICKEN, WING 1&2JT JMB CKD (5756622)	3		
CLIN-043	CHIP, KTL ASST SS BAG (4017558)	6		
CLIN-044	CHIP, TORTLA CORN YLW TRGLE SS (1475967)	9		
CLIN-045	CIRCLE, PIZA 14 CRRG WHT B (3235040)	1		
CLIN-046	CONTAINER, FM 8X8.5 1 CMPT WHT (7804594)	16		
CLIN-047	CONTAINER, FM 8X8.5 3 CMPT WHT (7804578)	13		
CLIN-048	CONTAINER, PLA PLST 6X6 1 (5640727)	5		
CLIN-049	CONTAINER, PLA PLST 8X8 1 (4954434)	5		
CLIN-050	CONTAINER, PLST 9X9 1C CLR INT (5865266)	2		
CLIN-051	COOKIE, CHOC CHIP 1 Z TFF IW (6602148)	1		
CLIN-052	COOKIE, PNT BUTR 1 Z TFF LAYR (8941858)	2		
CLIN-053	CORN, YLW KRNL FCY FZN BAG (9328261)	3		
CLIN-054	CRACKER, GHM HONY SQ IW (7036361)	2		
CLIN-055	CREAMER, FRNCH VNL SS NONDARY (9213869)	2		
CLIN-056	CREAMER, HZLNT SS NONDARY (6213862)	5		
CLIN-057	CREAMER, IRISH CRM SS SHLF (1135151)	1		
CLIN-058	CREAMER, LIQ HZLNT TFF SHLF (952432)	1		
CLIN-059	CROISSANT, BUTR 3 Z SLCD CKD (4880704)	5		
CLIN-060	CRUMB, CKY OREO MED PC BAG (4875373)	1		
CLIN-061	CRUST, PIZA 14 PARBK FZN (1364603)	9		
CLIN-062	CUP, FM 8 Z WHT (765032)	4		
CLIN-063	CUP, SFLE PLYST 4 Z TNSLT PTN (6702464)	2		
CLIN-064	DETERGENT, DSHWR PWDR BOX WHT (7771587)	1		
CLIN-065	DONUT, BSMRK BVRIAN CRM FILLD (4969939)	1		
CLIN-066	DONUT, BSMRK RSP JELLY FILLD (7697479)	1		
CLIN-067	DOUGH, CKY CHOC CHIP TOFEE PRM (2819177)	1		
CLIN-068	DOUGH, CKY OTML RAI 1.45 Z TFF (8130605)	1		
CLIN-069	DOUGH, CKY PNT BUTR 1.5 Z TFF (3891950)	2		
CLIN-070	DOUGH, CKY ROCKY RD 1.45 Z FZN (7803411)	1		
CLIN-071	DOUGH, CKY WHT CHOC CHIP MACAD (4291280)	2		
CLIN-072	DOUGH, RL CIN LG FZN (7289556)	1		
CLIN-073	DRESSING, 1000 ISL SS POUCH (71183)	3		
CLIN-074	DRESSING, BLU CHS SS POUCH (8630295)	3		
CLIN-075	DRESSING, FRNCH RED SHLF STABL (5507796)	6		
CLIN-076	DRESSING, ITLN GLDN SS POUCH (63743)	1		
CLIN-077	DRESSING, RANCH SS POUCH SHLF (4952149)	25		
CLIN-078	EGG ROLL, PORK & VEG 1.5 Z TFF (4959086)	1		
CLIN-079	EGG, LIQ MIX W/ MILK PSTRD CTN (831065)	1		
CLIN-080	EGG, LIQ SUB MIX NO CTRC ACID (718429)	1		
CLIN-081	EGG, PTY FRIED W/ BLK PPR 3.5 (8848509)	3		
CLIN-082	EGG, PTY SCRMB PLN 3.5 RND (2134435)	4		

CLIN	Product Description	* Est. Cases	Unit Price (\$)	Extended Price (\$)
CLIN-083	EGG, SHL LG GRDAA WHT LOOS EXP (823013)	5		
CLIN-084	ENGLISH MUFFIN, 2 Z DBL FORK (6688501)	1		
CLIN-085	FILLING, CHRY PIE RTU CAN SHLF (7330996)	0.33		
CLIN-086	FILM, 12 X2000 PLST RL SLIDE (4833984)	4		
CLIN-087	FRUIT COCKTAIL, DCD IN LS SHLF (9333527)	1		
CLIN-088	FRUIT COCKTAIL, DCD IN PEAR (7328123)	4		
CLIN-089	GELATIN, STWBY ORNG RTU SG/FR (1560382)	4		
CLIN-090	HAIRNET, NYLON 28 DARK BRN LW (1399005)	1		
CLIN-091	HAM, BNLS D-SHAPED SMKD APLWD (3938214)	1		
CLIN-092	HAM, SLCD .5 Z HWP 36% SMKD (3183118)	7		
CLIN-093	ICE CREAM CUP, STWBY FZN PLST (4863590)	2		
CLIN-094	ICE CREAM CUP, VNL FT/FR NSA (5574828)	1		
CLIN-095	JUICE, APPL 100% SS CUP SHLF (5606553)	11		
CLIN-096	JUICE, ORNG 100% SS CUP SHLF (5605985)	5		
CLIN-097	JUICE, ORNG 100% VITMN C ADDED (768010)	2		
CLIN-098	KETCHUP, TMTO 30% SS +O (2935182)	2		
CLIN-099	LABEL, 8X11 CLNG RL FLAT PK (5788492)	1		
CLIN-100	LABEL, USE BY 1.5X2 FOOD ROTAN (3642485)	2		
CLIN-101	LID, BWL 8-16 Z VTD PLST TNSLT (9954348)	2		
CLIN-102	LID, CUP 8 Z TEAR TAB PLST WHT (9578501)	3		
CLIN-103	MAYONNAISE, LIGHT PLST BTL (1530857)	5		
CLIN-104	MAYONNAISE, LIGHT PLST BTL (5328323)	2		
CLIN-105	MAYONNAISE, SS POUCH SHLF (8568531)	2		
CLIN-106	MIX, BSCT BTRMLK ADD WATER (7356819)	1		
CLIN-107	MIX, BSCT BTRMLK PHO-FREE ADD (4849984)	0		
CLIN-108	MIX, CAKE ANGEL FOOD 1 STEP (277384)	1		
CLIN-109	MIX, CAKE WHT PHO-FREE ADD (8828135)	1		
CLIN-110	MIX, CAKE YLW PHO-FREE ADD (5514123)	1		
CLIN-111	MIX, GRVY BSCT PPR PHO-FREE (9768876)	2		
CLIN-112	MUFFIN, ASST 2 Z TRAY FZN (3807372)	1		
CLIN-113	MUSTARD, YLW SS POUCH (4329314)	3		
CLIN-114	NON PRODUCT ALLOWANCE AND CHARGE (NPAC2345)	0		
CLIN-115	NOODLE, EGG CURLY 1/2 WIDE (6328678)	1		
CLIN-116	OIL, PAN & GRIL SOYBN LIQ BUTR (6560809)	1		
CLIN-117	OIL, PAN COTG SOYBN BUTR FLVR (5771936)	1		
CLIN-118	OIL, PAN COTG SOYBN OIL BASED (3708278)	2		
CLIN-119	OMELETTE, WSTRN 6X3 FLDED (5142724)	1		
CLIN-120	PEACH, SLCD IN LS SHLF STABL (4333522)	5		
CLIN-121	PEAR, DCD IN EX LS SHLF STABL (8791345)	8		
CLIN-122	PINEAPPLE, CHNK IN JCE SHLF (1333517)	3		
CLIN-123	PINEAPPLE, TIDBT IN JC PIZ CUT (6831705)	2		

CLIN	Product Description	* Est. Cases	Unit Price (\$)	Extended Price (\$)
CLIN-124	PINEAPPLE, TIDBT IN JCE SHLF (6333504)	1		
CLIN-125	POPCORN, RAW YLW JOLLY TIME (4008165)	1		
CLIN-126	POPSICLE, ASST TUBE ELCTY SHLF (7583974)	3		
CLIN-127	PORK, LOIN BNLS CC SESD RAW (7617327)	9		
CLIN-128	POT ROAST, BF BOTM RND CHO LOW (7027091)	8		
CLIN-129	POTATO, CUBE 5/8 SKON TFF (7304472)	1		
CLIN-130	POTATO, CUBE 7/16X3/4X1 SKON (972547)	1		
CLIN-131	POTATO, HASH BRN SHRD CKD REF (731349)	1		
CLIN-132	POTATO, HASH BRN SHRD IQF FZN (8327918)	5		
CLIN-133	POTATO, HBRN SHRD FANCY IQF FZ (700039)	1		
CLIN-134	PUDDING, BTRSC PLST SNACK PK (4189825)	1		
CLIN-135	PUDDING, CHOC SG/FR SS CUP (1560424)	2		
CLIN-136	PUDDING, VNL SG/FR SS CUP SHLF (1560416)	2		
CLIN-137	RICE, JASMINE RAW (4175479)	4		
CLIN-138	ROAST BEEF, BF TP INS RND RARE (2669117)	3		
CLIN-139	ROAST BEEF, CHO SMKD ALL NTRL (1048298)	1		
CLIN-140	ROAST BEEF, TOP INS RND C/O DF (2154276)	1		
CLIN-141	SALSA, SS CUP (9380742)	11		
CLIN-142	SALSA, THCK & CHNKY MILD PLST (1104389)	1		
CLIN-143	SANDWICH, PNT BUTR & JELLY FZN (1010082)	1		
CLIN-144	SANDWICH, PNT BUTR STWBRY FZN (1010083)	1		
CLIN-145	SAUCE, BBQ SWT & BOLD PLST JUG (3632643)	0.5		
CLIN-146	SAUCE, BUFLO HOT RED PLST JUG (5175377)	0.75		
CLIN-147	SAUCE, CHS MTRY JK TFF SHLF (8466099)	2		
CLIN-148	SAUCE, CHS QUESO CHILI FZN (3145237)	1		
CLIN-149	SAUCE, HOT PPR RED SS POUCH (2798526)	4		
CLIN-150	SAUCE, HOT SS POUCH (5214382)	3		
CLIN-151	SAUCE, SOY REDUC SDM PLST JUG (2050326)	1		
CLIN-152	SAUCE, SWT & SOUR RED PLST JUG (1017284)	1		
CLIN-153	SAUCE, TACO MILD SS POUCH (8333254)	4		
CLIN-154	SAUSAGE, ITLN MILD SWT CRBL (7555408)	2		
CLIN-155	SAUSAGE, PORK PTY 1.5 3 CK 2D (8328569)	1		
CLIN-156	SAUSAGE, TRKY PTY 1.5 Z CKD (5898451)	1		
CLIN-157	SAUSAGE, SESD CRBL PORK CKD (415240)	4		
CLIN-158	SEASONING SALT, PLST SHKR SLCT (7449812)	2		
CLIN-159	SEASONING, BLND GRAN +O (3569548)	1		
CLIN-160	SEASONING, ITLN FLK PLST SHKR (760314)	3		
CLIN-161	SEASONING, STR CORN MEX BLND (1054694)	1		
CLIN-162	SEASONING, TACO NO MSG SHLF (7449903)	5		
CLIN-163	SHERBET, RAINBOW CUP (3831468)	3		
CLIN-164	SHERBET, RNBW CUP (9172574)	2		

CLIN	Product Description	* Est. Cases	Unit Price (\$)	Extended Price (\$)
CLIN-165	SHORTENING, FRYG & BKNG VEG (438599)	2		
CLIN-166	SPICE, CHILI PWDR MILD PLST (760819)	1		
CLIN-167	SPICE, GRLC PWDR PLST SHKR (2501161)	1		
CLIN-168	SPICE, PPKA HNGAR GRND PLST (760405)	1		
CLIN-169	TART, BRRY TRIPL RSTIC 4 SS (7724958)	1		
CLIN-170	TEST STRIP, QTRNY PAPR 50-400 (7347636)	4		
CLIN-171	TOMATO, DCD 3/8 IN JCE PLD (4330197)	1		
CLIN-172	TOPPING, SNCKR CHPD BAG FZN (3851524)	1		
CLIN-173	TOPPING, WHPD NONDARY BAG FZN (180638)	1		
CLIN-174	TOPPING, WHPD NONDARY TUB FZN (8507956)	1		
CLIN-175	TORTILLA, FLOUR 12 PRSSD SHLF (3593294)	6		
CLIN-176	TUNA, LIGHT CHNK IN SPRG WATER (2010403)	3		
CLIN-177	TURKEY, BRST SKNLS SLCD .67 Z (5206982)	11		
CLIN-178	TURKEY, RST BRST SKON SOLUT (7833239)	11		
CLIN-179	VEGETABLE BLEND, ASIAN FZN (3328333)	1		
CLIN-180	VEGETABLE BLEND, CA NRD IQF (4328399)	1		
CLIN-181	VEGETABLE BLEND, ITLN FZN BAG (3328341)	1		
CLIN-182	VEGETABLE BLEND, ONION & PPR (3954369)	4		
CLIN-183	WIPE, PROBE PAPR 1.25X2.5 WHT (4688636)	2		
CLIN-184	WRAP, FOIL 9X10.75 INFLD POP (3328259)	1		
		569.08		
			Grand Total: \$	

REQUEST FOR QUOTATION (THIS IS NOT AN ORDER)		THIS RFQ ☐ IS ☒ IS NOT A SMALL BUSINESS SET ASIDE		PAGE 1 OF 1 PAGES
1. REQUEST NO. 75H70626Q00024		2. DATE ISSUED 05/05/2026		3. REQUISITION/PURCHASE REQUEST NO.
		4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG.1		RATING
5a. ISSUED BY Standing Rock Service Unit Fort Yates PHS Indian Hospital P.O. Box J Fort Yates ND 58538			6. DELIVERY BY (Date) Multiple	
			7. DELIVERY ☒ FOB DESTINATION ☐ OTHER (See Schedule)	
			9. DESTINATION	
5b. FOR INFORMATION CALL: (No collect calls)			a. NAME OF CONSIGNEE	
NAME DAVID JONES1		TELEPHONE NUMBER AREA CODE NUMBER		b. STREET ADDRESS
8. TO:				
a. NAME		b. COMPANY		
c. STREET ADDRESS			c. CITY	
d. CITY		e. STATE	f. ZIP CODE	d. STATE e. ZIP CODE
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS (Date) 05/27/2026 1200 CT		IMPORTANT: This is a request for information, and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or services. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotations must be completed by the quoter.		

11. SCHEDULE (Include applicable Federal, State and local taxes)					
ITEM NO. (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
	Please complete the bid sheets for CLINs 0001 through 0184. Grand Total: \$ _____				

12. DISCOUNT FOR PROMPT PAYMENT	☐ are ☐ are not attached	a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS	
						NUMBER

NOTE: Additional provisions and representations ☐ are ☐ are not attached

13. NAME AND ADDRESS OF QUOTER			14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15. DATE OF QUOTATION	
a. NAME OF QUOTER						
b. STREET ADDRESS			16. SIGNER			
c. COUNTY			a. NAME (Type or print)		b. TELEPHONE	
					AREA CODE	
d. CITY	e. STATE	f. ZIP CODE	c. TITLE (Type or print)		NUMBER	

PROVISIONS AND CLAUSES INCORPORATED BY REFERENCE

52.252-1 Solicitation Provisions Incorporated by Reference.

As prescribed in [52.107\(a\)](#), insert the following provision:

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/browse/index/far>

(End of provision)

52.252-2 Clauses Incorporated by Reference.

As prescribed in [52.107\(b\)](#), insert the following clause:

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/browse/index/far>

(End of clause)

I. Federal Acquisition Regulations (FAR)(48 CFR Chapter 1) Provisions and Clauses Incorporated by Reference.

FAR CITATION	PROVISION/CLAUSE TITLE	PROVISION / CLAUSE DATE
52.202-1	Definitions.	Jun-20
52.203-3	Gratuities.	Apr-84
52.203-7	Anti-Kickback Procedures.	Jun-20
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun-20
52.204-2	Security Requirements.	Mar-21
52.204-7	System for Award Management	Nov-24
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan-11
52.204-12	Unique Entity Identifier Maintenance	Oct-16
52.204-13	System for Award Management Maintenance.	Oct-18

52.204-14	Service Contract Reporting Requirements.	Oct-16
52.204-16	Commercial and Government Entity Code Reporting.	Aug-20
52.204-17	Ownership or Control of Offeror.	Aug-20
52.204-18	Commercial and Government Entity Code Maintenance.	Aug-20
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec-14
52.204-20	Predecessor of Offeror.	Aug-20
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov-21
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov-21
52.209-5	Certification Regarding Responsibility Matters.	Aug-20
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov-15
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.	Feb-16
52.212-1	Instructions to Offerors - Commercial Products and Commercial Services.	Sep-23
52.212-4	Contract Terms and Conditions - Commercial Products and Commercial Services.	Nov-23
52.216-24	Limitation of Government Liability.	Apr-84
52.216-25	Contract Definitization.	Oct-10
52.217-5	Evaluation of Options	Jul-90
52.217-8	Option to Extend Services.	Nov-99
52.224-1	Privacy Act Notification	Apr-84
52.224-2	Privacy Act	Apr-84
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran - Representation and Certifications.	Jun-20
52.232-1	Payments.	Apr-84
52.232-39	Unenforceability of Unauthorized Obligations.	Jun-13
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar-23
52.237-1	Site Visit.	Apr-84
52.237-3	Continuity of Services.	Jan-91
52.242-15	Stop-Work Order.	Aug-89
52.243-4	Changes (Deviation)	RFO Jun-25
52.243-7	Notification of Changes (Deviation)	RFO Jun-25
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan-25
52.246-4	Inspection of Services-Fixed-Price.	Aug-96
52.246-20	Warranty of Services.	May-01
52.246-25	Limitation of Liability-Services	Feb-97
52.247-34	F.o.b. Destination.	Jan-91
52.249-9	Default (Fixed-Price Supply and Services)	Apr-84
52.252-6	Authorization Deviations in Clauses	Nov-20
52.253-1	Computer Generated Forms.	Jan-91

PROVISIONS AND CLAUSES IN FULL TEXT

II. Federal Acquisition Regulations (FAR) (48 CFR Chapter 1) Provisions and Clauses in Full Text

52.204-21 Basic Safeguarding of Covered Contractor Information Systems.

As prescribed in [4.1903](#) , insert the following clause:

Basic Safeguarding of Covered Contractor Information Systems (Nov 2021)

(a) *Definitions.* As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information ([44 U.S.C. 3502](#)).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (*i.e.*, information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) *Other requirements.* This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

52.204-26 Covered Telecommunications Equipment or Services-Representation.

As prescribed in 4.2105(c), insert the following provision:

Covered Telecommunications Equipment or Services-Representation (Oct 2020)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) Representation. The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures.

As prescribed in 4.2306(b), insert the following provision:

Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures (Dec 2023)

(a) Definitions. As used in this provision, Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system, and Source have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) Prohibition. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) Procedures.

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) Disclosures. The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) Executive agency review of disclosures. The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.217-9 Option to Extend the Term of the Contract.

As prescribed in 17.208(g), insert a clause substantially the same as the following:

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.222-90 Addressing DEI Discrimination by Federal Contractors.

As prescribed in 22.2203, insert the following clause:

Addressing DEI Discrimination by Federal Contractors

(a) *Definitions.* As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year.

As prescribed in [32.706-1\(b\)](#), insert the following clause:

Availability of Funds for the Next Fiscal Year (Apr 1984)

Funds are not presently available for performance under this contract beyond September 30, 2025. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30, 2025, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

III. Department of HHS Acquisition Regulations (HHSAR) (48 Chapter 3) Clauses

352.203-70 Anti-Lobbying

As prescribed in HHSAR 303.808-70, the Contracting Officer shall insert the following clause:

Anti-Lobbying (DEC 2015)

Pursuant to the HHS annual appropriations acts, except for normal and recognized executive-legislative relationships, the Contractor shall not use any HHS contract funds for:

(a) Publicity or propaganda purposes;

(b) The preparation, distribution, or use of any kit, pamphlet, booklet, publication, electronic communication, radio, television, or video presentation designed to support or defeat the enactment of legislation before the Congress or any State or local legislature or legislative

body, except in presentation to the Congress or any state or local legislature itself; or designed to support or defeat any proposed or pending regulation, administrative action, or order issued by the executive branch of any state or local government, except in presentation to the executive branch of any state or local government itself; or

(c) Payment of salary or expenses of the Contractor, or any agent acting for the Contractor, related to any activity designed to influence the enactment of legislation, appropriations, regulation, administrative action, or Executive order proposed or pending before the Congress or any state government, state legislature or local legislature or legislative body, other than for normal and recognized executive-legislative relationships or participation by an agency or officer of a state, local, or tribal government in policymaking and administrative processes within the executive branch of that government.

(d) The prohibitions in subsections (a), (b), and (c) above shall include any activity to advocate or promote any proposed, pending, or future federal, state, or local tax increase, or any proposed, pending, or future requirement for, or restriction on, any legal consumer product, including its sale or marketing, including, but not limited to, the advocacy or promotion of gun control.

(End of clause)

352.223-70 Safety and Health.

As prescribed in HHSAR 323.7002, the Contracting Officer shall insert the following clause:

Safety and Health (DEC 2015)

(a) To help ensure the protection of the life and health of all persons, and to help prevent damage to property, the Contractor shall comply with all Federal, State, and local laws and regulations applicable to the work being performed under this contract. These laws are implemented or enforced by the Environmental Protection Agency, Occupational Safety and Health Administration (OSHA) and other regulatory/enforcement agencies at the Federal, State, and local levels.

(1) In addition, the Contractor shall comply with the following regulations when developing and implementing health and safety operating procedures and practices for both personnel and facilities involving the use or handling of hazardous materials and the conduct of research, development, or test projects:

(i) 29 CFR 1910.1030, Bloodborne pathogens; 29 CFR 1910.1450, Occupational exposure to hazardous chemicals in laboratories; and other applicable occupational health and safety standards issued by OSHA and included in 29 CFR part 1910. These regulations are available at <https://www.osha.gov/>.

(ii) Nuclear Regulatory Commission Standards and Regulations, pursuant to the Energy Reorganization Act of 1974 (42 U.S.C. 5801 *et seq.*). The Contractor may obtain copies from the U.S. Nuclear Regulatory Commission, Washington, DC 20555-0001.

(2) The following Government guidelines are recommended for developing and implementing health and safety operating procedures and practices for both personnel and facilities:

(i) Biosafety in Microbiological and Biomedical Laboratories, CDC. This publication is available at <http://www.cdc.gov/biosafety/publications/index.htm>.

(ii) Prudent Practices for Safety in Laboratories (1995), National Research Council, National Academy Press, 500 Fifth Street NW., Lockbox 285, Washington, DC 20055 (ISBN 0-309-05229-7). This publication is available at <http://www.nap.edu/catalog/4911/prudent-practices-in-the-laboratory-handling-and-disposal-of-chemicals>.

(b) Further, the Contractor shall take or cause to be taken additional safety measures as the Contracting Officer, in conjunction with the Contracting Officer's Representative or other appropriate officials, determines to be reasonably necessary. If compliance with these additional safety measures results in an increase or decrease in the cost or time required for performance of any part of work under this contract, the Contracting Officer will make an equitable adjustment in accordance with the applicable "Changes" clause set forth in this contract.

(c) The Contractor shall maintain an accurate record of, and promptly report to the Contracting Officer, all accidents or incidents resulting in the exposure of persons to toxic substances, hazardous materials or hazardous operations; the injury or death of any person; or damage to property incidental to work performed under the contract resulting from toxic or hazardous materials and resulting in any or all violations for which the Contractor has been cited by any Federal, State or local regulatory/enforcement agency. The report citing all accidents or incidents resulting in the exposure of persons to toxic substances, hazardous materials or hazardous operations; the injury or death of any person; or damage to property incidental to work performed under the contract resulting from toxic or hazardous materials and resulting in any or all violations for which the Contractor has been cited shall include a copy of the notice of violation and the findings of any inquiry or inspection, and an analysis addressing the impact these violations may have on the work remaining to be performed. The report shall also state the required action(s), if any, to be taken to correct any violation(s) noted by the Federal, State, or local regulatory/enforcement agency and the time frame allowed by the agency to accomplish the necessary corrective action.

(d) If the Contractor fails or refuses to comply with the Federal, State or local regulatory/enforcement agency's directive(s) regarding any violation(s) and prescribed corrective action(s), the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action (as approved by the Federal, State, or local

regulatory/enforcement agencies) has been taken and documented to the Contracting Officer. No part of the time lost due to any such stop work order shall form the basis for a request for extension or costs or damages by the Contractor.

(e) The Contractor shall insert the substance of this clause in each subcontract involving toxic substances, hazardous materials, or hazardous operations. The Contractor is responsible for the compliance of its subcontractors with the provisions of this clause.

(End of clause)

352.224-70 Privacy Act.

As prescribed in HHSAR 324.105(a), the Contracting Officer shall insert the following clause:

Privacy Act (DEC 2015)

This contract requires the Contractor to perform one or more of the following: (a) Design; (b) develop; or (c) operate a Federal agency system of records to accomplish an agency function in accordance with the Privacy Act of 1974 (Act) (5 U.S.C. 552a(m)(1)) and applicable agency regulations.

The term *system of records* means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual. Violations of the Act by the Contractor and/or its employees may result in the imposition of criminal penalties (5 U.S.C. 552a(i)).

The Contractor shall ensure that each of its employees knows the prescribed rules of conduct in 45 CFR part 5b and that each employee is aware that he/she is subject to criminal penalties for violation of the Act to the same extent as Department of Health and Human Services employees. These provisions also apply to all subcontracts the Contractor awards under this contract which require the design, development or operation of the designated system(s) of records (5 U.S.C. 552a(m)(1)). The contract work statement:

(a) Identifies the system(s) of records and the design, development, or operation work the Contractor is to perform; and

(b) Specifies the disposition to be made of such records upon completion of contract performance.

(End of clause)

352.224-71 Confidential Information.

As prescribed in HHSAR 324.105(b), insert the following clause:

Confidential Information (DEC 2015)

(a) Confidential Information, as used in this clause, means information or data of a personal nature about an individual, or proprietary information or data submitted by or pertaining to an institution or organization.

(b) Specific information or categories of information that the Government will furnish to the Contractor, or that the Contractor is expected to generate, which are confidential may be identified elsewhere in this contract. The Contracting Officer may modify this contract to identify Confidential Information from time to time during performance.

(c) Confidential Information or records shall not be disclosed by the Contractor until:

(1) Written advance notice of at least 45 days shall be provided to the Contracting Officer of the Contractor's intent to release findings of studies or research, to which an agency response may be appropriate to protect the public interest or that of the agency.

(2) For information provided by or on behalf of the government,

(i) The publication or dissemination of the following types of information are restricted under this contract: [INSERT RESTRICTED TYPES OF INFORMATION. IF NONE, SO STATE.]

(ii) The reason(s) for restricting the types of information identified in subparagraph (i) is/are: [STATE WHY THE PUBLIC OR GOVERNMENT INTEREST REQUIRES THE RESTRICTION OF EACH TYPE OF INFORMATION. ANY BASIS FOR NONDISCLOSURE WHICH WOULD BE VALID UNDER THE FREEDOM OF INFORMATION ACT IS SUFFICIENT UNDER THIS CLAUSE.]

(iii) Written advance notice of at least 45 days shall be provided to the Contracting Officer of the Contractor's intent to disseminate or publish information identified in subparagraph (2)(i). The contractor shall not disseminate or publish such information without the written consent of the Contracting Officer.

(d) Whenever the Contractor is uncertain with regard to the confidentiality of or a property interest in information under this contract, the Contractor should consult with the Contracting Officer prior to any release, disclosure, dissemination, or publication.

352.226-1 Indian Preference.

As prescribed in HHSAR 326.505(a), the Contracting Officer shall insert the following clause:

Indian Preference (DEC 2015)

(a) The Contractor agrees to give preference in employment opportunities under this contract to Indians who can perform required work, regardless of age (subject to existing laws and regulations), sex, religion, or tribal affiliation. To the extent feasible and consistent with the efficient performance of this contract, the Contractor further agrees to give preference in employment and training opportunities under this contract to Indians who are not fully qualified to perform regardless of age (subject to existing laws and regulations), sex, religion, or

tribal affiliation. The Contractor also agrees to give preference to Indian organizations and Indian-owned economic enterprises in the awarding of any subcontracts to the extent feasible and consistent with the efficient performance of this contract. The Contractor shall maintain the necessary statistical records to demonstrate compliance with this paragraph.

(b) In connection with the Indian employment preference requirements of this clause, the Contractor shall provide reasonable opportunities for training, incident to such employment. Such training shall include on-the-job, classroom, or apprenticeship training designed to increase the vocational effectiveness of an Indian employee.

(c) If the Contractor is unable to fill its employment and training opportunities after giving full consideration to Indians as required by this clause, the Contractor may satisfy those needs by selecting non-Indian persons in accordance with the clause of this contract entitled "Equal Opportunity."

(d) If no Indian organizations or Indian-owned economic enterprises are available under reasonable terms and conditions, including price, for awarding of subcontracts in connection with the work performed under this contract, the Contractor agrees to comply with the provisions of this contract involving utilization of small businesses; HUBZone small businesses; service-disabled, veteran-owned small businesses; 8(a) small businesses; veteran-owned small businesses; women-owned small businesses; or small disadvantaged businesses.

(e) As used in this clause,

(1) *Indian* means a person who is a member of an Indian tribe. If the Contractor has reason to doubt that a person seeking employment preference is an Indian, the Contractor shall grant the preference but shall require the individual provide evidence within 30 days from the tribe concerned that the person is a member of the tribe.

(2) *Indian tribe* means an Indian tribe, pueblo, band, nation, or other organized group or community, including Alaska Native village or regional or village corporation as defined in or established pursuant to the Alaska Native Claims Settlement Act (85 Stat. 688; 43 U.S.C. 1601) which the United States recognizes as eligible for the special programs and services provided to Indians because of its status as Indians.

(3) *Indian organization* means the governing body of any Indian Tribe or entity established or recognized by such governing body in accordance with the Indian Financing Act of 1974 (88 Stat. 77; 25 U.S.C. 1451).

(4) *Indian-owned economic enterprise* means any Indian-owned commercial, industrial, or business activity established or organized for the purpose of profit, provided that such Indian ownership shall constitute not less than 51 percent of the enterprise, and that ownership shall encompass active operation and control of the enterprise.

(f) The Contractor agrees to include the provisions of this clause, including this paragraph (f) of this clause, in each subcontract awarded at any tier under this contract.

(g) In the event of noncompliance with this clause, the Contracting Officer may terminate the contract in whole or in part or may pursue any other remedies authorized by law or by other provisions of the contract.

(End of clause)

352.226-2 Indian Preference Program.

As prescribed in HHSAR 326.505(b), the Contracting Officer shall insert the following clause:

Indian Preference Program (DEC 2015)

(a) In addition to the requirements of the clause of this contract entitled "Indian Preference," the Contractor agrees to establish and conduct an Indian preference program which will expand opportunities for Indians to receive preference for employment and training in connection with the work performed under this contract, and which will expand the opportunities for Indian organizations and Indian-owned economic enterprises to receive a preference in the awarding of subcontracts. In this connection, the Contractor shall perform the following:

(1) Designate a liaison officer who will maintain liaison with the Government and the Tribe(s) on Indian preference matters; supervise compliance with the provisions of this clause; and administer the Contractor's Indian preference program.

(2) Advise its recruitment sources in writing and include a statement in all employment advertisements that Indian applicants receive preference in employment and training incident to such employment.

(3) Not more than 20 calendar days after award of the contract, post a written notice setting forth the Contractor's employment needs and related training opportunities in the tribal office of any reservations on or near the contract work location. The notice shall include the approximate numbers and types of employees needed; the approximate dates of employment; any experience or special skills required for employment; training opportunities available; and other pertinent information necessary to advise prospective employees of any other employment requirements. The Contractor shall also request the tribe(s) on or near whose reservation(s) the Contractor will perform contract work to provide assistance filling its employment needs and training opportunities. The Contracting Officer will advise the Contractor of the name, location, and phone number of the Tribal officials to contact regarding the posting of notices and requests for Tribal assistance.

(4) Establish and conduct a subcontracting program which gives preference to Indian organizations and Indian-owned economic enterprises as subcontractors (including suppliers) under this contract. The Contractor shall give public notice of existing subcontracting opportunities and, to the extent feasible and consistent with the efficient performance of this

contract, shall solicit bids or proposals from Indian organizations or Indian-owned economic enterprises only. The Contractor shall request assistance and information on Indian firms qualified as subcontractors (including suppliers) from the Tribe(s) on or near whose reservation(s) the Contractor will perform contract work. The Contracting Officer will advise the Contractor of the name, location, and phone number of the Tribal officials to contact regarding the request for assistance and information. Public notices and solicitations for existing subcontracting opportunities shall provide an equitable opportunity for Indian firms to submit bids or proposals by including -

(i) A clear description of the supplies or services required, including quantities, specifications, and delivery schedules that facilitate the participation of Indian firms;

(ii) A statement indicating that Indian organizations and Indian-owned economic enterprises will receive preference in accordance with section 7(b) of Public Law 93-638; 88 Stat. 2205; 25 U.S.C. 450e(b);

(iii) Definitions for the terms "Indian organization" and "Indian-owned economic enterprise" prescribed under the "Indian Preference" clause of this contract;

(iv) A statement that the bidder or offeror shall complete certifying that it is an Indian organization or Indian-owned economic enterprise; and

(v) A closing date for receipt of bids or proposals which provides sufficient time for preparation and submission of a bid or proposal. If, after soliciting bids or proposals from Indian organizations and Indian-owned economic enterprises, the Contractor receives no responsive bid or acceptable proposal, the Contractor shall comply with the requirements of paragraph (d) of the "Indian Preference" clause of this contract. If the Contractor receives one or more responsive bids or conforming proposals, the Contractor shall award the contract to the low, responsive, responsible bidder or conforming offer from a responsible offeror if the price is reasonable. If the Contractor determines the low responsive bid or conforming proposal's price is unreasonable, the Contractor shall attempt to negotiate a reasonable price and award a subcontract. If parties cannot agree on a reasonable price, the Contractor shall comply with the requirements of paragraph (d) of the "Indian Preference" clause of this contract.

(5) Maintain written records under this contract which demonstrate -

(i) The numbers of Indians seeking employment for each employment position available under this contract;

(ii) The number and types of positions filled by Indians and non-Indians;

(iii) The total number of Indians employed under this contract;

(iv) For those positions having both Indian and non-Indian applicants, and a non-Indian is selected for employment, the reason(s) why the Contractor did not select the Indian applicant;

(v) Actions taken to give preference to Indian organizations and Indian-owned economic enterprises for subcontracting opportunities which exist under this contract;

(vi) Reasons why Indian subcontractors and or suppliers did not receive preference for each requirement where the Contractor determined that such preference was inconsistent with efficient contract performance; and

(vii) The number of Indian organizations and Indian-owned economic enterprises contacted, and the number receiving subcontract awards under this contract.

(6) Submit to the Contracting Officer for approval a quarterly report summarizing the Contractor's Indian preference program and indicating the number and types of available positions filled by Indians and non-Indians, and the dollar amounts of all subcontracts awarded to Indian organizations and Indian-owned economic enterprises, and to all other firms.

(7) Maintain records pursuant to this clause and keep them available for review by the Government for one year after final payment under this contract, or for such longer period in accordance with requirements of any other clause of this contract or by applicable law or regulation.

(b) For purposes of this clause, the following definitions of terms shall apply:

(1) The terms *Indian*, *Indian tribe*, *Indian organization*, and *Indian-owned economic enterprise* are defined in the clause of this contract entitled *Indian Preference*.

(2) *Indian reservation* includes Indian reservations, public domain Indian allotments, former Indian reservations in Oklahoma, and land held by incorporated Native groups, regional corporations, and village corporations under the provisions of the Alaska Native Claims Settlement Act (85 Stat. 688; 43 U.S.C. 1601 *et seq.*)

(3) *On or near an Indian reservation* means on a reservation or reservations or within that area surrounding an Indian reservation(s) where a person seeking employment could reasonably expect to commute to and from in the course of a work day.

(c) Nothing in the requirements of this clause shall preclude Indian tribes from independently developing and enforcing their own Indian preference requirements. Such requirements must not conflict with any Federal statutory or regulatory requirement dealing with the award and administration of contracts.

(d) The Contractor agrees to include the provisions of this clause, including this paragraph (d), in each subcontract awarded at any tier under this contract and to notify the Contracting Officer of such subcontracts.

(e) In the event of noncompliance with this clause, the Contracting Officer may terminate the contract in whole or in part or may pursue any other remedies authorized by law or by other provisions of the contract.

(End of clause)

352.237-70 Pro-Children Act.

As prescribed in HHSAR 337.103(d)(1), the Contracting Officer shall insert the following clause:

Pro-Children Act (DEC 2015)

(a) Public Law 103-227, Title X, Part C, also known as the *Pro-Children Act of 1994* (Act), 20 U.S.C. 7183, imposes restrictions on smoking in facilities where certain federally funded children's services are provided. The Act prohibits smoking within any indoor facility (or portion thereof), whether owned, leased, or contracted for, that is used for the routine or regular provision of: (i) Kindergarten, elementary, or secondary education or library services or (ii) health or day care services that are provided to children under the age of 18. The statutory prohibition also applies to indoor facilities that are constructed, operated, or maintained with Federal funds.

(b) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all subcontracts awarded under this contract for the specified children's services. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act. Failure to comply with the Act may result in the imposition of a civil monetary penalty in an amount not to exceed \$1,000 for each violation and/or the imposition of an administrative compliance order on the responsible entity. Each day a violation continues constitutes a separate violation.

352.237-71 Crime Control Act - Reporting of Child Abuse.

As prescribed in HHSAR 337.103(d)(2), the Contracting Officer shall insert the following clause:

Crime Control Act of 1990 - Reporting of Child Abuse (DEC 2015)

(a) Public Law 101-647, also known as the Crime Control Act of 1990 (Act), imposes responsibilities on certain individuals who, while engaged in a professional capacity or activity, as defined in the Act, on Federal land or in a federally-operated (or contracted) facility, learn of facts that give the individual reason to suspect that a child has suffered an incident of child abuse.

(b) The Act designates "covered professionals" as those persons engaged in professions and activities in eight different categories including, but not limited to, teachers, social workers, physicians, dentists, medical residents or interns, hospital personnel and administrators, nurses, health care practitioners, chiropractors, osteopaths, pharmacists, optometrists, podiatrists, emergency medical technicians, ambulance drivers, alcohol or drug treatment personnel, psychologists, psychiatrists, mental health professionals, child care workers and administrators, and commercial film and photo processors. The Act defines the term "child

abuse” as the physical or mental injury, sexual abuse or exploitation, or negligent treatment of a child.

(c) Accordingly, any person engaged in a covered profession or activity under an HHS contract or subcontract, regardless of the purpose of the contract or subcontract, shall immediately report a suspected child abuse incident in accordance with the provisions of the Act. If a child is suspected of being harmed, the appropriate State Child Abuse Hotline, local child protective services (CPS), or law enforcement agency shall be contacted. For more information about where and how to file a report, the Childhelp USA, National Child Abuse Hotline (1-800-4-A-CHILD) shall be called. Any covered professional failing to make a timely report of such incident shall be guilty of a Class B misdemeanor.

(d) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all applicable subcontracts awarded under this contract. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act.

(End of clause)

352.237-72 Crime Control Act - Requirement for Background Checks.

As prescribed in HHSAR 337.103(d)(3), the Contracting Officer shall insert the following clause:
Crime Control Act of 1990 - Requirement for Background Checks (DEC 2015)

(a) Public Law 101-647, also known as the Crime Control Act of 1990 (Act), requires that all individuals involved with the provision of child care services to children under the age of 18 undergo a criminal background check. “Child care services” include, but are not limited to, social services, health and mental health care, child (day) care, education (whether or not directly involved in teaching), and rehabilitative programs. Any conviction for a sex crime, an offense involving a child victim, or a drug felony, may be grounds for denying employment or for dismissal of an employee providing any of the services listed above.

(b) The Contracting Officer will provide the necessary information to the Contractor regarding the process for obtaining the background check. The Contractor may hire a staff person provisionally prior to the completion of a background check, if at all times prior to the receipt of the background check during which children are in the care of the newly-hired person, the person is within the sight and under the supervision of a previously investigated staff person.

(c) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all applicable subcontracts awarded under this contract. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act.

(End of clause)

352.237-73 Indian Child Protection and Family Violence Act.

As prescribed in HHSAR 337.103(d)(4) the Contracting Officer shall insert the following clause:

Indian Child Protection and Family Violence Act (DEC 2015)

(a) This contract is subject to the Indian Child Protection and Family Violence Act, Public Law 101-630 (25 U.S.C. 3201 *et seq.*) The duties and responsibilities required by this contract may involve regular contact with or control over Indian children. Public Law 101-630 prohibits employment, including Personal Service Contracts, with anyone who has been convicted of any crime of violence. Any such conviction should immediately be brought to the attention of the Contracting Officer. The contractor will be subject to a character investigation, conducted by the Indian Health Service, Office of Human Resources. Until such time as the contractor has been notified of completion of the investigation, the contractor shall have no unsupervised contact with Indian children. In order to initiate this background investigation, the contractor must provide information as required in this contract or as directed by the Contracting Officer.

(b) As a prerequisite to providing services under this contract, the Contractor is required to complete and sign the declaration found in Section J of this contract.

(End of clause)

352.237-74 Non-Discrimination in Service Delivery.

As prescribed in HHSAR 337.103(e), the Contracting Officer shall insert the following clause in solicitations and contracts:

Non-Discrimination In Service Delivery (DEC 2015)

It is the policy of the Department of Health and Human Services that no person otherwise eligible will be excluded from participation in, denied the benefits of, or subjected to discrimination in the administration of HHS programs and services based on non-merit factors such as race, color, national origin, religion, sex, gender identity, sexual orientation, or disability (physical or mental). By acceptance of this contract, the contractor agrees to comply with this policy in supporting the program and in performing the services called for under this contract. The contractor shall include this clause in all sub-contracts awarded under this contract for supporting or performing the specified program and services. Accordingly, the contractor shall ensure that each of its employees, and any sub-contractor staff, is made aware of, understands, and complies with this policy.

(End of clause)

352.232-71 Electronic submission of payment requests

As prescribed in HHSAR 332.7003, use the following clause:

Electronic Submission of Payment Requests

(a) *Definitions.* As used in this clause -

Payment request means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices" and the applicable Payment clause included in this contract.

(b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Department of Treasury Invoice Processing Platform (IPP) or successor system. Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.

(c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with HHS procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.

(End of Clause)